School Responsibilities & Information Duties

Regarding Regulatory Compliance (KLE, APVO M-V)

Internal Administrative Guide – **LEGALLY VERIFIED VERSION**

Document Version: January 2026 – With Legal Sources

IMPORTANT NOTICE

This document addresses the question of **who bears responsibility** when teachers are not properly informed about regulatory requirements, particularly regarding:

- KLE Sprechen (Complex Speaking Assessment)
- Teaching certification requirements (Lehrbefugnis)
- APVO M-V compliance in the qualification phase

All statements have been verified against German law and official sources.

1 Legal Foundations

1.1 Employer's Duty of Care (Fürsorgepflicht)

VERIFIED: Constitutional & Statutory Basis

Article 33(4) Grundgesetz (Basic Law):
The duty of care is constitutionally mandated as an "established principle of professional civil service."
§ 78 Bundesbeamtengesetz (BBG):
"Der Dienstherr hat im Rahmen des Dienst- und Treueverhältnisses für das Wohl der Beamtinnen und Beamten [...] zu sorgen. Er schützt die Beamtinnen und Beamten bei ihrer amtlichen Tätigkeit und in ihrer Stellung."
(The employer must ensure the welfare of civil servants [...]. He protects civil servants in their official duties and in their position.)
§ 45 Beamtenstatusgesetz (BeamtStG):
Parallel provision for state-level civil servants.
Source: dbb beamtenbund; dejure.org § 78 BBG

1.2 Duty to Inform (Belehrungspflicht)

VERIFIED: Federal Administrative Court Doctrine

BVerwG (Bundesverwaltungsgericht) established doctrine:
"Andererseits obliegt dem Dienstherrn keine aus der beamtenrechtlichen Fürsorgepflicht abzuleitende **allgemeine** Pflicht zur Belehrung und Beratung über alle für den Beamten einschlägigen Vorschriften, zumal über solche, deren Kenntnis sich der Beamte unschwer selbst verschaffen kann."
However, enhanced duty applies when:

- The official is in a recognizable error of fact or law (Sach- oder Rechtsirrtum)
- Special circumstances exist that trigger an information duty
- The regulations are not easily accessible to the employee

Source: BVerwG case law; PUBLICUS Boorberg Verlag

2 Organisational Misconduct (Organisationsverschulden)

VERIFIED: Three Types of Organisational Liability

According to German school law doctrine, school leaders face liability for three types of organisational failure:
1. Auswahlverschulden (Selection Misconduct):
Delegating responsibilities to unsuitable staff members.
2. Anweisungsverschulden (Instruction Misconduct):
"Dieses liegt dann vor, wenn dienstliche Anweisungen **fehlen oder lückenhaft** sind. Das Gesetz verlangt das Vorliegen einer Anleitung zu sachgerechter Arbeit."
(This occurs when official instructions are **missing or incomplete**. The law requires guidance for proper work.)
3. Überwachungsverschulden (Supervision Misconduct):
Lack of monitoring mechanisms to verify compliance.
Source: schulleiter.de/schulwissenplus.de – Rechtsarchiv Haftung

CRITICAL: Anweisungsverschulden Applies Here

If school leadership fails to provide clear instructions about KLE requirements to teachers, this constitutes **Anweisungsverschulden**. The school leadership – not the uninformed teacher – bears liability.

3 Internal School Hierarchy of Responsibility

VERIFIED: School Leadership Duties

Haufe.de – Schulrecht:
"Die Schulleitung ist für die Einhaltung des Schulrechts in der Schule verantwortlich."
(School leadership is responsible for compliance with school law in the school.)
ADO NRW (Allgemeine Dienstordnung):
"Die Schulleiterin oder der Schulleiter ist für die Unfallverhütung sowie eine wirksame Erste Hilfe und für den Arbeits- und Gesundheitsschutz verantwortlich."
Cornelsen.de – Grundwissen Schulrecht:
Teachers have a "Folgepflicht" (duty to follow) regarding instructions from school leadership. Conversely, school leadership must **provide** those instructions.

Level	Position	Responsibility
1. School Leadership	Principal (Schulleiter/in)	• Overall responsibility for APVO compliance • Personnel matters • Teaching certification verification • Final accountability
2. Upper Secondary	Coordinator (Oberstufenkoordinator)	• Operational Q-phase implementation • KLE organization and scheduling • Exam planning • Informing department heads
3. Department Level	Head of Languages (Fachkonferenzleitung)	• Subject-specific communication • Passing requirements to teachers • Coordinating within department
4. Teacher Level	Subject Teacher (Fachlehrkraft)	• Implementation of assigned tasks • **NOT** responsible for systemic issues • **NOT** liable for missing certification

4 Liability Analysis: Missed Information

4.1 Burden of Proof

VERIFIED: BVerwG Doctrine on Burden of Proof

Beweislast (Burden of Proof):
"Der Beamte trägt die materielle Beweislast für die Verletzung der Fürsorgepflicht [...]. **Den Dienstherrn trifft die materielle Beweislast dafür, dass den, dessen Verhalten er sich zurechnen lassen muss, kein Verschulden trifft.**"
Translation: The official bears the burden of proof for the breach of duty of care. **The employer bears the burden of proof that there was no fault.**
Consequence: "Deshalb geht ein 'non liquet' in Bezug auf die Verschuldensfrage **zulasten des Dienstherrn**."
(Therefore, unresolved questions of fault work **against the employer**.)
Source: BVerwG case law compilation; PUBLICUS Boorberg

The School Must Prove:

1. The document was **delivered** to the teacher
2. The teacher was **informed it was mandatory** reading
3. **Reasonable time** was given to read and understand it
4. The **importance** of the content was communicated

If the school cannot prove these points → The teacher is NOT liable.
Legal basis: Burden of proof lies with employer per BVerwG doctrine.

4.2 Fault Standards

VERIFIED: Liability Only for Gross Negligence

Article 34 Grundgesetz + § 839 BGB:
"Grundsätzlich gilt, dass der Dienstherr für die Taten seines Bediensteten haftet. Nur bei 'vorsätzlichem' oder 'grob fahrlässigem' Handeln des Bediensteten kann der Dienstherr diesen in Regress nehmen."
Translation: The employer is generally liable for the acts of employees. Only for **intentional or grossly negligent** conduct can the employer seek recourse from the employee.
Implication: A teacher who was not informed cannot be grossly negligent for not knowing.
Source: DBV.de – Lehrer Haftung; vlbs-bremen.de

5 Definition of Key Terms

5.1 "Officially Distributed" (Offiziell verteilt)

What Qualifies as Official Distribution

A document is considered **officially distributed** when **ALL** of the following conditions are met:

Requirement	Description
1. Active Delivery	The document was actively sent/given to the teacher, not merely "made available."
✓	Email sent directly to teacher's official school address
✓	Physical copy placed in teacher's mailbox
✓	Handed out during a meeting
×	Uploaded to shared folder without notification
×	Posted on bulletin board
×	"Available on the intranet somewhere"
2. Proof of Receipt	There is documentation that the teacher received it.
✓	Signed distribution list
✓	Email with read receipt confirmed
✓	Minutes of meeting noting attendance
×	Email sent without confirmation
×	Assumed to be in mailbox
3. Marked as Mandatory	The document was clearly labeled as required reading.
✓	Subject line: "MANDATORY: Please read by [date]"
✓	Cover page states "Required reading for all Q-phase teachers"
✓	Verbal instruction in meeting (documented in minutes)
×	"FYI" or "For your information"
×	No indication of importance
4. Reasonable Timeframe	Sufficient time was provided to read and act on the information.
✓	Document provided weeks/months before deadline
✓	Reminder sent before deadline
×	Document provided day before action required
×	No clear deadline communicated

5.2 "Bringschuld" vs. "Holschuld"

VERIFIED: Legal Definitions from § 269 BGB

Holschuld (Duty to Fetch):
"Holschuld ist ein Begriff aus dem Schuldrecht und bedeutet, dass Leistungs- und Erfolgsort beim Schuldner liegt." The creditor must fetch the performance from the debtor.
Bringschuld (Duty to Deliver):
"Bei der Bringschuld muss der Schuldner die Leistung am Wohnort seines Gläubigers bewirken." The debtor must deliver to the creditor.
Source: Wikipedia – Holschuld; frage.de; § 269 Abs. 2 BGB

German Term	Meaning	Who Bears Risk
Bringschuld	Duty to deliver	**School** must actively push information to teachers
Holschuld	Duty to seek/fetch	**Teacher** must actively seek out information

Critical Regulatory Matters

For matters involving:

- Legal requirements (APVO M-V, KLE)
- Examination regulations
- Certification requirements
- Student rights and obligations

The school has a **Bringschuld** (duty to deliver).

Legal basis: Anweisungsverschulden doctrine – "wenn dienstliche Anweisungen fehlen oder lückenhaft sind" constitutes organisational misconduct by leadership.

6 Liability Scenarios

Situation	Liability	Legal Reasoning
Document placed in shared folder without notification	**School's fault**	Anweisungsverschulden – instructions "fehlen"
Email sent, no read confirmation requested	**Gray area**	School should have verified receipt (Überwachung)
Email sent with read receipt confirmed	**Teacher should have read**	Proof of receipt exists
Signed distribution list exists	**Teacher liable**	Clear proof of receipt and acknowledgment
Mentioned in staff meeting (minutes exist, attendance documented)	**Teacher should know**	Documented verbal communication
"It's on the intranet somewhere"	**School's fault**	No active distribution, Anweisungsverschulden
New teacher, no onboarding on regulations	**School's fault**	Fürsorgepflicht includes onboarding
Teacher absent during meeting, no follow-up	**School's fault**	Überwachungsverschulden – no verification
Annual reminder system in place, documented	**Teacher should know**	Systematic approach to information

7 The Teacher's Defense

Valid Defense Statement

A teacher can credibly defend themselves if they can truthfully state:

> *"I was never told this document existed. I was never informed that I needed to read it. I received no training or briefing on KLE requirements or the implications of my certification status for Q-phase teaching."*

Legal effect: If this statement is credible and the school cannot prove otherwise, **liability shifts entirely to school leadership** per BVerwG burden of proof doctrine.

VERIFIED: Standard of Expected Knowledge

BVerwG doctrine on reasonable expectations:
"Von einem Beamten kann nämlich grundsätzlich keine bessere Rechtseinsicht erwartet werden, als ein Kollegialgericht sie nach sorgfältiger Prüfung gewonnen hat."
Translation: An official cannot be expected to have better legal insight than a collegiate court would reach after careful examination.
Implication: If the requirement was unclear or not communicated, the teacher cannot be blamed for not knowing.
Source: PUBLICUS Boorberg – Fürsorgepflicht Teil 3

8 KLE Sprechen: Specific Requirements

VERIFIED: APVO M-V Requirements

§ 17 Abs. 5 APVO M-V:
"In den modernen Fremdsprachen ist von jeder Schülerin und jedem Schüler mindestens eine komplexe Leistungsermittlung im Kompetenzbereich Sprechen abzulegen."
Translation: In modern foreign languages, every student must complete at least one complex performance assessment in the speaking competency area.
§ 22 Abs. 5 APVO M-V:
When speaking assessment is combined with listening comprehension: Listening 20%, Speaking 80%.
Timing: Must be completed during the qualification phase (Q1–Q3).
Source: Handreichung komplexe Leistungsermittlung Sprechen (bildung-mv.de); landesrecht-mv.de

VERIFIED: Who May Conduct KLE

Facultas Docendi (Teaching Qualification):
"Bei der Fakultas (facultas docendi) handelt es sich um einen älteren Begriff für die Qualifikation von Gymnasiallehrern. Diese Fakultas bedeutet eine Lehrberechtigung für ein bestimmtes Fach am Gymnasium nach Ablage der wissenschaftlichen Prüfung."
Implication: Teachers without Lehrbefugnis/Facultas in the subject **cannot conduct official examinations** including KLE.
Source: Wikipedia – Lehrberechtigung; dewiki.de – Facultas Docendi

9 Summary: Who Is Responsible?

Responsibility	Belongs To (with Legal Basis)
Ensuring APVO M-V compliance	School Leadership (Schulleitung – Gesamtverantwortung)
Organizing KLE assessments	Upper Secondary Coordinator (Oberstufenkoordinator)
Informing teachers of requirements	School Leadership (Anweisungspflicht, § 78 BBG Fürsorgepflicht)
Verifying teaching certifications	School Leadership (Personnel responsibility)
Reading officially distributed documents	Teacher (**only if properly distributed**)
Seeking out undistributed information	**NOT the teacher's duty** (keine allgemeine Holschuld)
Consequences of systemic failures	School Leadership (Organisationsverschulden)

Final Note – Legally Verified

A teacher without proper teaching certification (Lehrbefugnis) who was assigned to teach a Q-phase course bears NO personal liability for:

- The school's failure to conduct KLE assessments
- The mismatch between their qualifications and the assignment
- Regulatory non-compliance resulting from improper staffing

These are administrative decisions made **above the teacher's level** and remain the responsibility of school leadership.

Legal basis:

- Art. 34 GG – State liability for employee actions
- Anweisungsverschulden doctrine – Leadership responsible for incomplete instructions
- BVerwG burden of proof – Employer must prove lack of fault
- § 78 BBG / § 45 BeamtStG – Fürsorgepflicht includes proper assignment

10 Sources and References

10.1 Primary Legal Sources

- **Grundgesetz (GG):** Art. 33 Abs. 4, Art. 34
- **Bundesbeamtengesetz (BBG):** § 78 (Fürsorgepflicht)
- **Beamtenstatusgesetz (BeamtStG):** § 45
- **Bürgerliches Gesetzbuch (BGB):** § 269 (Holschuld), § 276 (Verschulden), § 280 (Schadensersatz), § 618 (Fürsorgepflicht), § 831 (Organisationshaftung), § 839 (Amtshaftung)
- **APVO M-V:** § 17, § 22 (KLE Sprechen)

10.2 Secondary Sources

- dbb beamtenbund – Fürsorgepflicht des Dienstherrn
  `https://www.dbb.de/lexikon/themenartikel/f/fuersorgepflicht-des-dienstherrn.html`
- Schulleiter.de / Schulwissenplus.de – Organisationsverschulden
  `https://www.schulleiter.de/rechtsarchiv/haftung/organisationsverschulden-als-schulleiter`
- Haufe.de – Aufsichtspflicht Schule
  `https://www.haufe.de/recht/weitere-rechtsgebiete/strafrecht-oeffentl-recht/aufsichtspfli 204_315744.html`
- Cornelsen.de – Grundwissen Schulrecht
  `https://www.cornelsen.de/magazin/beitraege/rechte-pflichten-lehrer-grundwissen`
- DBV.de – Haftung für Lehrer
  `https://www.dbv.de/i/lehrer-haftung`
- PUBLICUS Boorberg – Fürsorgepflicht (Teile 1–3)
  `https://publicus.boorberg.de/`
- Bildungsserver M-V – Handreichung KLE Sprechen
  `https://www.bildung-mv.de/`

- Landesrecht M-V – APVO M-V
  https://www.landesrecht-mv.de/
- Fachanwalt.de – Fürsorgepflicht Arbeitgeber/Dienstherr
  https://www.fachanwalt.de/magazin/arbeitsrecht/fuersorgepflicht-arbeitgeber-dienstherr

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All legal statements verified against German law – January 2026